

25LBCV01897 25LBCV01897

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-03

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1. Parties'

Positions

Defendant propounded RFAs on Plaintiff on 12/24/25. As of the filing of the moving papers, on 5/08/26, and despite a meet and confer letter on 5/01/26, Plaintiff had not served responses. Defendant therefore filed this motion to deem RFAs admitted.

Plaintiff opposes the motion. Plaintiff's attorney declares the meet and confer efforts were insufficient and "further" responses and verifications have been served, such that the motion should be denied as moot and no sanctions imposed.

2. Initial

not Further

Plaintiff's opposition papers continually refer to the standards relating to motions to compel further responses to RFAs, as opposed to a motion to deem RFAs admitted. Defendant's moving papers establish Plaintiff never served any responses at all to the subject discovery. Despite Plaintiff referring to her responses as "further" responses, she does not attach the responses and her attorney does not declare that initial responses were ever served. The Court will therefore treat this motion as a motion to deem RFAs admitted, not one to compel further responses to RFAs. Notably, there is no meet and confer requirement when filing a motion to deem RFAs admitted. Plaintiff's arguments re: the insufficiency of the meet and confer process are therefore rejected.

3. Substantive

Responses

Plaintiff's attorney declares she served verifications and responses, such that the motion to deem RFAs admitted must be denied as moot.

4. Sanctions

Defendant's notice of motion indicates Defendant seeks imposition of sanctions against Plaintiff in the amount of \$1010. Plaintiff argues sanctions should not be imposed because Plaintiff acted with good cause or substantial justification. Plaintiff cites CCP §2033.290 in support of this contention. §2033.290 relates, however, to motions to compel FURTHER responses to RFAs. §2033.280 relates to a motion to deem RFAs admitted, and sanctions are absolutely mandatory in connection with §2033.280, with no exception for good cause or substantial justification.

The Court has reviewed Defense Counsel's declaration and finds the requested \$1010 both reasonable and fully supported. Sanctions are sought and imposed against Plaintiff only and not against her attorney of record. She is ordered to pay sanctions to Defendant, by and through its attorney of record, in the total amount of \$1010, within twenty days.

Defendant is ordered to give notice.